



Tips, Complaints, and Referrals

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Thank you for contacting the United States Securities and Exchange Commission. This automated response confirms that your submission has been received successfully. We are always interested in hearing from the public, and your submission will be given careful consideration in view of the Commission's overall responsibilities under the federal securities laws. Please note, however, that it is the Commission's policy to conduct its investigations on a non-public basis in order to preserve the integrity of its investigative process. Subject to the provisions of the Freedom of Information Act, we cannot disclose to you any information which we may gather, nor can we confirm the existence or non-existence of an investigation, unless such information is made a matter of public record in proceedings brought before the Commission or the courts. Therefore, this may be the only response that you receive. If you want to learn more about how the Commission handles inquiries or complaints, please visit http://www.sec.gov/complaint/info_tipscomplaint.shtml.

What is your complaint about?

Q: Please select the option that best describes your complaint.

A: Other

Q: Is this supplemental information to a previous complaint?

A: No

Q: In your own words, describe the conduct or situation you are complaining about.

A: EXECUTIVE SUMMARY: This complaint refers to two SPACS: 1. OXUS Acquisition Corp (Registration No. 333-273967, CIK 1852973) 2. TAVIA Acquisition Corp. (Registration No. 333-280275, CIK 2020385) Firstly, I have evidence that OXUS Acquisition Corp. failed under its duty to comply with the SEC disclosure requirements of Regulation S-K Title 17, Part 229.103. There is an ongoing criminal investigation by IRS:CI into Mr. Zahmoul's money laundering activities of prostitution proceeds. The respondent and OXUS Acquisition Corp. had knowledge of the investigation and failed to disclose it to the SEC. Secondly, the due diligence into the origin of the Sponsor funds, funds contributed by Oxus Capital PTE, and the funds contributed by Kenes Rakishev is grossly deficient and unsatisfactory. Mr. Kakishev is currently laundering millions of dollars of proceeds from kleptocracy and he has achieved access to the U.S. capital markets with OXUS and TAVIA, two SPACs regulated by the SEC. INTRODUCTION AND BACKGROUND Since learning of the respondent's appointment to the board of Oxus in June 2022 I immediately became concerned regarding the reasons for his appointment. Until that time, I had



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not known the respondent to have conducted significant business in Kazakhstan or have significant Kazakh relationships. Moreover, it appeared odd that the respondent, a French-Tunisian businessman having previously focused on renewable energy in the middle East and North Africa, be given such a position of trust by Kazakh businessmen who are known for their insular – even secretive – business dealings. Rakishev's documented status as a Kazakh Oligarch and Kleptocrat has been the subject of investigation by countless authorities in the United States and the United Kingdom as a result of his involvement in the pilfering and laundering of national assets belonging to the people of Kazakhstan and his reputation as a front-man not only for Karim Massimov ("Massimov"), the former Prime Minister of Kazakhstan and Head of the Kazakh KGB, but also for Ramzan Kadyrov ("Kadyrov"), Chechen warlord leader of the Russian republic of Chechnya and Putin's strongest ally in the war in Ukraine. Kadyrov is the subject of several international sanctions. Most concerning is Rakishev's manufacturing of the Arlan mine-resistant armored platform ("MRAP") military vehicles and his apparent supplying of these vehicles to Kadyrov in violation of international sanctions and in support of the Chechen invasion of the Ukraine in April 2022. International opinion considers the Chechen invasion and Rakishev's facilitation of financial transactions around the globe to ultimately be serving as a means for Russia to be evading sanctions in addition to Kadyrov. Rakishev's various business ventures, including Oxus, are considered to serve the purpose of laundering the proceeds of kleptocracy for the Kazakh Oligarchs and disguising funds derived from Kadyrov.

Chronology • May 2005 – February 2009: Mukhtar Ablyazov was chairman and controlling shareholder of BTA Bank, a bank incorporated in Kazakhstan. • Early 2009: In the wake of the financial crisis, Kazakhstan banking regulators forced a recapitalization of the bank. The state-owned sovereign wealth fund Samruk-Kazyna seized control, the bank was nationalized, and Mr. Ablyazov was forced out. He fled to London amidst allegations of embezzlement and fraud. • 2009: BTA Bank filed 11 civil claims against Mr. Ablyazov in London and alleged that Mr. Ablyazov had embezzled some \$6 billion. The U.K. High Court issued a worldwide freezing order over his assets. • 14 February 2014: Rakishev acquired an initial stake in BTA Bank from the government and over the next few years he consolidated his control and became the owner of the bank. • 20 February 2014: Russian invasion of Crimea. • 5 February 2014: Hunter Biden met with Kenes Rakishev at the Hay Adams Hotel in Washington, D.C. In email correspondences with Devon Archer surrounding the meeting, Mr. Rakishev requested Secretary of State John Kerry visit Kazakhstan. Archer replied, "if we have some business started as planned, I will ensure its planned soonest." • 16 April 2015: Vice President Joe Biden attended a dinner with Kenes Rakishev, Karim Massimov, Hunter Biden, and Devon Archer at Cafe Milano in Washington. • 2 January 2022: Protests and civil unrest in Kazakhstan. Russia sends "peacekeeping" troops. • 24 February 2022: Russian invasion of Ukraine. • 25 February 2022: U.S. and its allies impose sanctions to restrict Russia's access to capital markets and the banking system, as well as its procurement channels to import advanced technologies and its ability to produce and stockpile military equipment. • 1 June 2022: the respondent is appointed to the Board of Directors of Oxus.

Kenes Rakishev 2009 until in or about September 2014, BTA Bank was majority owned and controlled by the Republic of Kazakhstan through its sovereign wealth fund Samruk-Kazyna. In February 2014, Kenes Rakishev and Kazkommertsbank acquired 46.5% of the shares of BTA Bank each from the sovereign fund and Rakishev became the new chairman of BTA's board of directors. Over the next few years, Rakishev gradually grew his share of BTA into a controlling stake and transformed the institution, shedding its banking business, and turning BTA effectively into an investment company whose main assets were its claims against Ablyazov, estimated at \$6 billion in (Qazkom), eventually becoming its largest shareholder and chairman of the board of directors. In 2018, Kazkommertsbank merged with Halyk Bank, the largest bank in Kazakhstan by total assets. According to a U.S. lawsuit, "Kazakhstan v. Felix Sater", Rakishev was a go-between tasked with buying Hunter Biden's loyalty and gaining access to the U.S. markets. The lawsuit documents provide a short summary of Rakishev's background: "Rakishev is reputed to have raped underage girls in Russia" and organized "no holds barred" fighting contests involving eight-year-old children. The Russian authorities refused to investigate these crimes because Rakishev was under Karim Massimov's protection and also because Rakishev's father-in-law (Imangali Tasmagambetov),



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former Prime Minister and former ambassador of Kazakhstan to Russia, intervened to stop the investigation.” The lawsuit further states: “The Kazakh plot against Sater was coordinated by Karim Massimov, Chairman of the Kazakh KGB, and his henchman Kenes Rakishev, known in Kazakhstan as “Massimov’s Wallet.” During this time, Massimov and Rakishev were actively seeking influence with American politicians. Sater learned of this plot when the FBI released documents in January 2021 as part of Special Counsel Robert Mueller’s investigation into supposed Russian collusion in the 2016 election”. Kenes Rakishev owns a network of companies, with interests in the U.S., U.K., Kazakhstan, Russia, China, Israel, and the E.U. He has been implicated in the theft, concealment and laundering of kleptocracy proceeds on behalf of his father-in-law, and through his own control and pilfering of a number of Kazakh conglomerates and state-owned entities. Rakishev is Instrumental in Putin’s War In April 2022, an Arlan mine-resistant armored platform (MRAP) (military vehicle) was spotted in the streets of Mariupol as a part of Ramzan Kadyrov’s Chechen troops, invading Ukraine. The Arlan military vehicle, a winterized version of South African Paramount Group’s Marauder, is designed to perform quick reaction force operations, infantry fire support, and long-range border patrol. Arlan MRAPs are manufactured in Kazakhstan by Kazakhstan Paramount Engineering (KPE), a partnership between Kenes Rakishev and Paramount Group, a South African military defense equipment manufacturer. Rakishev was appointed to the board of directors of JSC National Company Kazakhstan Engineering in March 2014. That same year, his father-in-law, Imangali Tasmagambetov, was named Kazakhstan’s Minister of Defense in Karim Massimov’s government. Rakishev leveraged his close connections with the Kazakh regime to consolidate his position in the defense industry in a very short time. With the full backing of the country’s principal military stakeholders: JSC National Company Kazakhstan Engineering, the state owned defense consortium, and the Ministry of Defense, Rakishev moved rapidly to achieve a dominant position in the defense sector. His beneficial ownership in KPE is hidden behind his nominees. U.S. House Bi-Partisan Committee on Oversight and Accountability. On 9 August 2023, the House Oversight Committee released a memorandum re: “New Evidence Resulting from the Oversight Committee’s Investigation into the Biden Family’s Influence Peddling and Business Schemes”. The report corroborates the Committee’s findings that money transferred to Hunter Biden’s bank accounts from foreign nationals and entities when Joe Biden was Vice-President. i. Hunter Biden and his partner, Devon Archer, used Rosemont Seneca entities to bring in millions from oligarchs in Europe and Asia. Using accounts nominally tied to Devon Archer (but using the familiar “Rosemont Seneca” branding), Hunter Biden received incremental payments originating from foreign sources, attempting to hide the source and size of the payments. ii. In February 2014, a Russian oligarch sent \$3.5 million to a shell company associated with Hunter Biden and Devon Archer. Russian billionaire Yelena Baturina transferred \$3.5 million to Rosemont Seneca Thornton, a shell company. Approximately \$1 million was transferred to Devon Archer, and the remainder was used to initially fund a new company account, Rosemont Seneca Bohai, which Devon Archer and Hunter Biden used to receive other foreign wires. iii. In Spring 2014, a Ukrainian oligarch placed Archer and Biden on the Burisma Board of Directors and agreed to pay them \$1 million each per year. Subsequently, Vice- President Joe Biden visited Ukraine soon after the first payment was received. Payments from Burisma for both Devon Archer and Hunter Biden were wired to Rosemont Seneca Bohai. Payments were transmitted in incremental amounts to Hunter Biden’s different bank accounts. iv. In April 2014, Kenes Rakishev wired the exact price of Biden’s sportscar to a bank account used by Archer and Biden. In February 2014, Hunter Biden met with Kenes Rakishev at a Washington, D.C. hotel. Rakishev worked closely with the prime minister of Kazakhstan, Karim Massimov. In April, Rakishev wired \$142,300 to Rosemont Seneca Bohai. The next day, a payment was made from Rosemont Seneca Bohai for a sportscar for Hunter Biden in the amount of \$142,300. Archer and Biden then arranged for Burisma executives to visit Kazakhstan in June 2014 to evaluate a three-way deal among Burisma, a Chinese state-owned company, and the government of Kazakhstan. v. Hunter Biden received millions of dollars in payments from Yelena Baturina, Burisma, and Kenes Rakishev. Vice President Biden had dinner with them in the spring of 2014 and 2015 in Washington, D.C. OXUS ACQUISITION CORP. 1. “On June 1, 2022, Mr. Karim Zahmoul was appointed as independent director. The respondent was on the board of directors of Oxus. He was on the Audit Committee,



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the Compensation Committee, and the Nominating Committee. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model". 2. SEC Form 3 Initial Statement of Beneficial Ownership of Securities dated 7 June 2022 states: "The shares of Class B ordinary shares have no expiration date and will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination, or earlier at the option of the holder, on a one-for-one basis, subject to adjustment as set forth in the Issuer's registration statement on Form S-1." 3. The SEC Proxy Statement and Prospectus dated 16 January 2024 states that the value of the respondent's beneficial ownership in Oxus is approximately \$565,000 (\$1,695,000/3). "The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares" (p. 34). 4. On 2 February 2024, Oxus held an extraordinary general meeting of shareholders and approved the closing of the transaction. 5. On 7 February 2024 (the Closing Date) the Business Combination was consummated (ie the Performance Conditions were met). The directors' Class B shares were automatically converted into the new company shares in accordance with the exchange ratio. 5. On 8 February 2024, the new company began trading on Nasdaq under the ticker symbol BRLS. The value of the respondent's shares can be calculated by direct observation using a marked-to-market valuation. 6. On 8 February 2024, Kenes Rakishev posted on his Instagram account several pictures of himself, the respondent and the Oxus/Borealis team at the Nasdaq Exchange in New York, celebrating the launch of BRLS. Pictures of the respondent are also published on the Nasdaq's website. 7. The U.K. trial took place from 19 to 28 February 2024. The respondent swore his financial statements on 02.19.2024 and reported a value of \$0 for the Oxus shares. He stated that he resigned his position as a director and he instructs his counsel to state that his shares in Oxus "have no value". 8. Mr. Zahmoul committed perjury under oath in the U.K. court.

Q: Are you having or have you had difficulty getting access to your funds or securities?

A: Unknown

Q: Did you suffer a loss?

A: Yes

Q: Enter amount of loss to nearest dollar without characters (e.g., 15000, not \$15,000.00).

A: 20000000

Q: When did you become aware of the conduct? (m/d/yyyy)



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A: 03/06/2024

Q: When did the conduct begin? (m/d/yyyy)

A: 06/01/2022

Q: Is the conduct ongoing?

A: Yes

Q: Has the individual or firm acknowledged the conduct?

A: No

Q: How did you learn about the conduct? You may select more than one answer.

A: Internal business documents; Publicly available information; SEC filings; Social media (e.g., Facebook, Twitter, blogs, chat rooms, and electronic communities of interest)

Q: Have you taken any action regarding your complaint? You may select more than one answer.

A: Complained to law enforcement; Complained to other; Other

Q: Provide details.

A: The case is in the Appeals Court in the U.K. The U.K. High Court and the Appeals Court are suppressing the evidence.

Who are you complaining about?

Subject # 1

Q: Are you complaining about a person or a firm?

A: Firm

Q: Select the title that best describes the person or firm that you are complaining about.



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A: Other

Q: For Other Firm, please specify.

A: Blank Check SIC 6770

Q: Are you or were you associated with the person or firm when the alleged conduct occurred?

A: Yes

Q: How are you or were you associated with the person or firm you are complaining about?

A: I started divorce proceedings against Mr. Zahmoul in January 2020 in the UK High Court. I have knowledge of his appointment to the OXUS board of directors and his involvement with Kenes Rakishev through the divorce proceedings.

Q: Identifier Type

A: CIK

Q: CIK

A: CIK 1852973 and CIK 2020385

Q: Are you a current or former Employee, Officer, Partner, or Employee Director of any entity you are complaining about?

A: No

Q: Are you a current or former Non-Employee Director, Consultant, Contractor or Trustee of any entity you are complaining about?

A: No

Q: Firm Name

A: OXUS ACQUISITION CORP.



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Q: If the complaint is about an entity or person that has custody or control of your investments, have you had difficulty contacting that entity or person?

A: No

Subject # 2

Q: Are you complaining about a person or a firm?

A: Firm

Q: Select the title that best describes the person or firm that you are complaining about.

A: Other

Q: For Other Firm, please specify.

A: Blank Cchecks SIC 6770

Q: Are you or were you associated with the person or firm when the alleged conduct occurred?

A: Yes

Q: How are you or were you associated with the person or firm you are complaining about?

A: I am involved in divorce proceedings with Mr. Zahmoul (see above).

Q: Identifier Type

A: CIK

Q: CIK

A: CIK 2020385

Q: Are you a current or former Employee, Officer, Partner, or Employee Director of any entity you are complaining about?



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A: No

Q: Are you a current or former Non-Employee Director, Consultant, Contractor or Trustee of any entity you are complaining about?

A: No

Q: Firm Name

A: TAVIA, INC.

Q: If the complaint is about an entity or person that has custody or control of your investments, have you had difficulty contacting that entity or person?

A: No

Which investment products are involved?

Q: Select the type of product involved in your complaint.

A: Equities (e.g., common stock, preferred stock)

Q: Please select the category that best describes the security product.

A: Common stock (exchange-traded stock)

Q: Enter the ticker symbol, if known.

A: BRLS

Q: Enter the product name(s)

A: SIC 2000

About you

Submitter # 1



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Q: Are you filing this tip under the SEC's whistleblower program?

A: Yes

Q: Are you an attorney filling out this form on behalf of an anonymous whistleblower client who is seeking an award?

A: No

Q: Title

A: Ms

Q: First Name

A: Nadia

Q: Last Name

A: Zahmoul

Q: Street Address

A: 3093 Arrowhead Rd

Q: Address (Continued)

A: Teton Village

Q: Zip / Postal Code

A: 83025

Q: City

A: TETON VILLAGE



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Q: State / Province

A: WY

Q: Country

A: US

Q: Home Telephone

A: +447913328615

Q: Work Telephone

A: +447913328615

Q: Mobile Telephone

A: +447913328615

Q: Other Telephone

A: +14244269226

Q: Email Address

A: NADIA@ROSEKROSS.COM

Q: What is the best way to reach you?

A: Email

Q: Are you represented by an attorney in connection with this matter, or would you like to provide your attorney's contact information?

A: No



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Q: Select the profession that best represents you.

A: Other

Q: For Other, please specify.

A: Equity Research Analyst at Lehman Brothers until 2004.

Q: Have you reported the matter at issue in this submission to your supervisor, compliance office, whistleblower hotline, ombudsman, or any other available mechanism for reporting possible violations at any entity you are complaining about?

A: No

Q: Were you retaliated against for reporting the matter at issue in this submission either internally at the entity or to a regulator?

A: No

Q: Has anyone taken steps to prevent you from reporting this violation to the SEC?

A: Yes

Q: If you answered "Yes," please provide details.

A: I am being bullied and threatened by Mr. Zahmoul and his lawyers in the U.S. and the U.K.

Q: Are documents or other information being submitted that could potentially identify the whistleblower?

A: Yes

Q: Identify with particularity any documents or other information in your submission that you believe could reasonably be expected to reveal your identity.

A: All non-SEC filings

Q: Does the whistleblower want to be eligible to apply for a whistleblower award?



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A: Yes

Q: 1. Are you, or were you at the time you acquired the original information you are submitting to us, a member, officer or employee of the Department of Justice; the Securities and Exchange Commission; the Comptroller of the Currency; the Board of Governors of the Federal Reserve System; the Federal Deposit Insurance Corporation; the Office of Thrift Supervision; the Public Company Accounting Oversight Board; any law enforcement organization; or any national securities exchange, registered securities association, registered clearing agency, or the Municipal Securities Rulemaking Board?

A: No

Q: 2. Are you, or were you at the time you acquired the original information you are submitting to us, a member, officer, or employee of a foreign government, any political subdivision, department, agency, or instrumentality of a foreign government, or any other foreign financial regulatory authority as that term is defined in Section 3(a)(52) of the Securities Exchange Act of 1934 (15 U.S.C. Section 78c(a)(52))?

A: No

Q: 3. Did you acquire the information being submitted to us through the performance of an engagement required under the federal securities laws by an independent public accountant?

A: No

Q: 4. Are you providing this information pursuant to a cooperation agreement with the SEC or another agency or organization?

A: No

Q: 5. Are you a spouse, parent, child, or sibling of a member or employee of the SEC, or do you reside in the same household as a member or employee of the SEC?

A: No

Q: 6. Have you or anyone representing you received any request, inquiry or demand that relates to the subject matter of your submission (i) from the SEC; (ii) in connection with an investigation, inspection or examination by the Public Company Accounting Oversight Board, or any self-regulatory organization; or (iii) in connection with an investigation by Congress, any other authority of the federal government, or a state Attorney General or securities regulatory authority?

A: No



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Q: 7. Are you currently a subject or target of a criminal investigation, or have you been convicted of a criminal violation, in connection with the information you are submitting to the SEC?

A: No

Q: 8. Did you acquire the information being provided to us from any person described in Questions 1 through 7?

A: No

Q: I declare under penalty of perjury under the laws of the United States that the information contained herein is true, correct and complete to the best of my knowledge, information, and belief. I fully understand that I may be subject to prosecution and ineligible for a whistleblower award if, in my submission of information, my other dealings with the SEC, or my dealings with another authority in connection with a related action, I knowingly and willfully make any false, fictitious, or fraudulent statements or representations, or use any false writing or document knowing that the writing or document contains any false, fictitious, or fraudulent statement or entry.

A: Agree



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Documents

Document Name	Document Type
01. Material Event - SPAC merger effective date 8 February 2024 -Nasdaq ticker BRLS.pdf	application/pdf
02. Urgent - BV20D01752 - FALSE REPRESENTATIONS MADE DURING TRIAL - Sent Items • nadia@rosekross.com.pdf	application/pdf
03. D-11_OXUS_FALSE_REPRESENTATIONS.pdf	application/pdf
04. EVIDENCE_FROM_PROSPECTUS.pdf	application/pdf
8523FE5B-3F2E-48B0-86E5-A3D86BEADA3E.jpeg	image/jpeg
9681ED66-966A-4427-ABD3-334926F8F512.jpeg	image/jpeg
WhatsApp+Image+2024-02-15+at+12.24.22+(1).jpeg	image/jpeg
WhatsApp+Image+2024-02-15+at+12.23.59.jpeg	image/jpeg
02. Eml without exhibits 09April2024.pdf	application/pdf
03. Overview Kleptocracy Network.pdf	application/pdf



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05. Hunter Biden Computer.pdf	application/pdf
04. Timeline Kleptocracy.pdf	application/pdf
KIAR_Kenes Rakishev report.pdf	application/pdf
Investigation reveals Kenes Rakishev defrauded BTA Bank of \$414 million - oligarchs.pdf	application/pdf
IRS_CI_PART 1.pdf	application/pdf
IRS_CI_PART 3.pdf	application/pdf
IRS_CI_PART 4.pdf	application/pdf
IRS_CI_PART 5.pdf	application/pdf
Confidential ML of kleptocracy funds.pdf	application/pdf